THIRD AMENDMENT

TO

GROUND LEASE

FOR

REAL ESTATE PARCEL EC-2C

BETWEEN

PARCEL EC-2C LLC, an Illinois limited liability company, as Lessor

AND

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company, as Lessee

DATED AS OF: November 2015

THIRD AMENDMENT TO GROUND LEASE

This THIRD **AMENDMENT TO GROUND LEASE** (this "Third Amendment") is made and entered into as of November 2015 ("Effective Date") by and between **PARCEL EC-2C** LLC, an Illinois limited liability company ("Lessor"), and **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company ("Lessee").

RECITALS

A.

Chicago Title Land Trust Company, as Trustee under a Trust Agreement dated December 1, 2007 and known as Trust No. 1114334 ("Original Lessor"), and Lessee entered into that certain Ground Lease dated as of December 1, 2007 ("Original Ground Lease"), a Short Form and Memorandum of which was recorded on January 31, 2008 in the Office of the Recorder of Deeds of Cook County, Illinois as Document No. 0803133011, whereby Lessee leased the premises legally described on Exhibit A to the Original Ground Lease, being the same premises legally described on Exhibit A attached hereto ("Premises"). The Original Ground Lease was amended by that certain First Amendment to Ground Lease dated as of February 5, 2010 ("First Amendment"), and by that certain Second Amendment to Ground Lease dated as of September 1, 2012 ("Second Amendment"; said Original Ground Lease, as amended by the First Amendment and the Second Amendment, is referred to as the "Current Ground Lease").

B. Original Lessor conveyed the Premises to Lessor pursuant to that certain Trustee's Deed dated May 9, 2014 and recorded on May 23, 2014 in the Office of the Recorder of Deeds of Cook County, Illinois as Document No. 1414313039, and Original Lessor assigned to Lessor, and Lessor assumed from Original Lessor, all of Original Lessor's right, title and interest as lessor in and to the Current Ground Lease pursuant to that certain Ground Lease Assignment and Assumption Agreement dated May 9, 2014, and recorded on May 23, 2014 in the Office of the Recorder of Deeds of Cook County, Illinois as Document No. 1414313041.

C.

As contemplated in Section 6.1 of the Original Ground Lease, Lessee has requested the right to expand the Permitted Use (as defined in the Original Ground Lease) of the Premises to include, as an ancillary use and not a primary use, subject to obtaining and maintaining a liquor license issued by the Village that would permit Lessee or a Tenant of Lessee to serve beer and wine only and only for consumption on the Premises, and Lessor has approved such expansion; however, the parties wish to amend the terms and conditions under which such expansion is permitted.

D.

Lessor and Lessee desire by this instrument to amend the Current Ground Lease to set forth the terms and conditions referenced in the foregoing recitals.

AGREEMENT

Accordingly, in consideration of their mutual agreements as set forth in this Third Amendment, Lessor and Lessee hereby agree as follows:

1.

Incorporation of Recitals. The recitals above are incorporated into and made a part of this Third Amendment as if fully set forth in this Section 1.

2. **Capitalized** Terms. Each capitalized term used herein, unless otherwise specified, shall have the meaning ascribed to it in the Current Ground Lease. In addition, from and after the date hereof, the term "Lease" as used in the Current Ground Lease and this Third Amendment shall mean and include the Current Ground Lease, as amended by this Third Amendment.

3. Liquor **Sales.** Effective as of the Effective Date, Section 6.1 of the Original Ground Lease is deleted in its entirety and replaced with the following language (but Sections 6.1.1 and 6.1.2 of the Original Ground Lease shall remain unmodified) :

6.1 **Use of Premises**. At all times during the Term of this Lease, the Premises shall be used by Lessee and any other occupant, including Tenants, solely as an ice skating rink and related locker rooms, pro shop, concessions (which shall not include the sale of liquor, except as otherwise provided in this Section 6.1), off-ice and on-ice training and conditioning facilities and related offices, ancillary facilities and meeting rooms consistent with the Techny Overlay District provisions of the Zoning Code, and for no other purposes except as specifically set forth herein (**"Permitted Use"**).

(a) Terms and Conditions for Limited Right to Allow Liquor Sales for Consumption on the Premises. Notwithstanding the foregoing provisions of this Section 6.1, Lessor acknowledges that Lessee has requested, and Lessor has approved, the right to expand the Permitted Use to include, *as* an ancillary use and not a primary use, the right on the part of Lessee or a Tenant of Lessee to serve beer and wine only and only for consumption on the Premises (the "**Liquor Sales and Consumption Use**"), which Lessor has agreed to allow, but only under the following conditions: (i) Lessee or a Tenant shall at all times hold a valid liquor license issued by the Village that permits the sale of beer and wine only for consumption on that portion of the Premises hereinafter described; (ii) no beer and wine sales shall be allowed unless the concessions stand is open or food service is provided in the second floor viewing room specifically built out for such use (the **"Bar Area"**) pursuant to clause (vi) below and as permitted under applicable Village ordinances, but in no event may the Liquor Sales and Consumption Use be permitted after 10 p.m. Sunday through Thursday or after 11 p.m. on Fridays and Saturdays; (iii) the Liquor Sales and Consumption Use shall be limited to the Bar Area; (iv) the Bar Area shall have a maximum capacity of 25 persons; (v) no one

under the age of 21 shall be allowed in the Bar Area unless such person or persons are accompanied by an adult over the age of 21; (vi) food service shall be available at all times during the hours of operation in the Bar Area and shall consist of (1) either the full concession menu delivered from the concession stand and/or (2) a more limited choice menu, including some sandwich options, that is made available in the Bar Area during hours when the concession stand is not open; (vii) no more than two drinks may be served per purchase and no more than four drinks may be served per person; and (viii) the identity of the holder of the liquor

4.

license shall be approved by Lessor and shall at all times be known to Lessor, and Lessee shall provide notice in writing to Lessor at least thirty (30) days prior to the proposed effective date of any proposed change in the identity of such liquor license holder or in the nature or requirements of the liquor license (or any proposed change in the operations of the Liquor Sales and Consumption Use under which said liquor license has been issued). Any changes to the conditions set forth in this Section 6.1(a) shall be subject to Lessor's prior written approval.

(b) Approvals. Lessee shall not authorize the holder of the liquor license and shall not

seek any approvals, modifications, waivers or considerations of any type from the Village or other third parties pertaining to the liquor license, the Liquor Sales and Consumption Use or the terms and conditions related thereto unless and until Lessee has first requested and obtained said approvals, modifications, waivers or considerations from Lessor. Lessee hereby acknowledges and agrees that any such approvals, modifications, waivers or considerations that Lessee obtains from the Village or other third parties in violation of this Section 6.1 shall be null and void and of no force and effect, and no such approvals, modifications, waivers or considerations shall have any effect or influence on Lessor's approval or disapproval of the same.

(c) Lessor's Right to Revoke Approvals. Notwithstanding anything to the contrary in this Lease, Lessor shall have the right to revoke the right of Lessee (and that of the holder of the liquor license) to the Liquor Sales and Consumption Use if (a) there are any violations of the conditions set forth in this Section 6.1, the liquor license issued by the Village, the Annexation Agreement or other local municipal requirements or state law; or (b) documented, bona fide complaints arise with respect to intoxicated patrons found leaving from or present on the Premises.

(d) Violations. Any violation of this Section 6.1 shall constitute a Default under the Lease, and Lessor shall be entitled to any and all remedies under the Lease and at law as a result of such Default.

Reaffirmation and Confirmation of **Ground Lease**. All of the terms, conditions, agreements, obligations and provisions set forth in the Current Ground Lease as amended, modified and supplemented by this Third Amendment shall be and they hereby are reaffirmed, ratified and confirmed in their entirety and incorporated herein by reference as if fully set forth herein.

5. **Modification**. This Third Amendment and the Lease may not be modified or amended further except by written agreement executed by the parties hereto.

6. Conflicts. In the event of a conflict between this Third Amendment and the Current Ground Lease, the terms and provisions of this Third Amendment shall, in all instances and for all purposes, control.

7. **Severability.** The parties hereto intend and believe that each provision in this Third

Amendment comports with all applicable local, state and federal laws and judicial decisions. However, if any provision in this Third Amendment is found by a court of law to be in violation of any applicable ordinance, statute, law, administrative or judicial decision, or public policy, and if such court should declare such provision to be illegal, void or unenforceable as written, then such provision shall be given force to the fullest possible extent that the same is legal, valid and enforceable and the remainder of this Third Amendment shall be construed as if such provision was not contained therein.

8. **Entire Agreement**. This Third Amendment contains the entire agreement of Lessor and Lessee with respect to the subject matter hereof. No prior agreements or understandings with respect to the subject matter hereof shall be valid or of any force or effect.

9. **Captions.** Paragraph and section headings used herein are for convenience of reference only and shall not affect the construction of any provision of this Third Amendment.

10. **Governing Law**. This Third Amendment shall be governed by the laws of the State of Illinois, as may be amended from time to time, without giving effect to any choice or conflict of law provision or rule that would cause the application of the laws of any jurisdiction other than the State of Illinois.

11. **Binding** Effect. This Third Amendment shall bind and inure to the benefit of Lessor and Lessee, and their respective successors and assigns.

12. **Counterparts**. This Third Amendment may be executed in one or more counterparts, each of which shall constitute an original, but all of which, when taken together shall constitute only one legal instrument. This Third Amendment shall become effective when counterparts hereof (when taken together) shall bear the signatures of both parties hereto.

[SIGNATURE PAGES FOLLOW]

Lessor has caused this Third Amendment intending it to be effective as of the date and year first above written.

LESSOR:

PARCEL EC-2C LLC, an Illinois limited liability company

By:

Name:

Its:

ACKNOWLEDGMENT

STATE OF ILLINOIS

) SS

COUNTY OF COOK

by

This instrument was acknowledged before me on

limited liability company.

My Commission expires:

as the

2015

of **PARCEL EC-2C LLC,** an Illinois

Notary Public

Lessee has caused this Third Amendment to be executed intending it to be effective as of the date and year first above written.

LESSEE:

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company

By: **Wilmette Hockey Association, Inc.**, an Illinois not-for-profit corporation, one of its members

By:

Printed Name: Leonore Lee

Its: President

By: **Winnetka Hockey Club, Inc.**, an Illinois not-for-profit corporation, one of its members

By:

Printed Name:

Its:

ACKNOWLEDGMENTS

STATE OF ILLINOIS

COUNTY OF COOK

) SS

This instrument was acknowledged before me on

by Leonore Lee

January

Le

as the President of **Wilmette Hockey Association, Inc.**, an Illinois not-for-profit corporation, as one of the members of **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company.

Danielle Shee

Notary Public

My Commission expires:

June 24, 2019

OFFICIAL SEAL
DANIELLE SHEA
Notary **Public** - State of Illinois
My Commission Expires Jun 24, 2019

STATE OF ILLINOIS

COUNTY OF COOK
) SS)

This instrument was acknowledged before me on

by

as the

2015

of **Winnetka Hockey Club, Inc.**, an Illinois not-for-profit corporation, one of the members of **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company.

My Commission expires:

Notary Public

Exhibit A

Legal Description

PARCEL EC-2C

PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12 EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844049 DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE (5) COURSES AND DISTANCES: 1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; 2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; 3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; 4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET; 5) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING THREE (3) COURSES AND DISTANCES: 1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; 2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET; 3) NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC- 2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO (2) COURSES AND

DISTANCES: 1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; 2) ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET, HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS.

PIN:

Address:

CH217327274,6

04-14-305-005-0000

2111 Founders Drive, Northbrook, Illinois 60062